

Brazil Export Entity — Structuring Brief

TrueSight DAO / Agroverse

Prepared for Paloma — FounderHaus (to brief introduced legal counsel)

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Classification: Confidential

1 • Purpose

TrueSight DAO operates Agroverse, a regenerative-agriculture network. The venture being formalised is a bot-enabled agricultural export bridge from Northern Brazil — beginning in the cacao-producing regions of Bahia and Pará — that moves verified produce from farming cooperatives and producers to buyers abroad.

The first destination market — the United States — is already fully formalised on the import side under a Delaware company, TrueTech Inc, the FDA-FSVP importer of record and the US Customs importer of record. We also intend to export to China and Europe, each served by its own dedicated importer entity.

The Brazilian export side is not yet formalised in a dedicated entity. Today, exports leave Brazil through the personal CNPJ of Matheus Reis Pereira (trading as "Black King"). That arrangement does not scale, concentrates Brazilian tax exposure on an individual, and cannot be operated by software agents.

2 • Executive Summary

We are evaluating two structural paths for the holding entity that will own the Brazilian export CNPJ. Both solve the same problem — replacing Matheus's personal CNPJ with a dedicated, DAO-owned export entity — but through different jurisdictions and at different cost/complexity.

Path A — Próspera HoldCo (original proposal): Incorporate in the Próspera ZEDE (Honduras special economic zone) as the holding company owning the Brazilian export CNPJ.

Path B — Wyoming UNA/DUNA (alternative): Form a Wyoming Unincorporated Nonprofit Association (UNA) via OtoCo (~\$50 gas, this week) which can later convert to a Decentralized Unincorporated Nonprofit Association (DUNA). The UNA/DUNA would own the Brazilian export CNPJ directly.

Core question for counsel: We need a comparative assessment of both routes — not a binary yes/no. Specifically:

1. **Can a Wyoming UNA/DUNA legally own a Brazilian Ltda as a foreign quotaholder?** If yes, what are the specific requirements, restrictions, and ongoing compliance obligations?
2. **What does Próspera offer that the UNA/DUNA cannot?** — e.g. tax treatment of the holding entity, recognition by Brazilian authorities as a foreign quotaholder, banking access, ease of AI-agent operation, ability to issue equity to contributors

3. **What does the UNA/DUNA offer that Próspera cannot?** — e.g. cost, speed, US legal recognition, Wise banking, simpler ownership mapping to TDG holders

4. **If both are viable, which is more appropriate for our specific use case?** — a bot-enabled agricultural export bridge owned by ~316 token-holding contributors, with AI-agent-operated subsidiaries

In one line (either path):

DAO contributors → [Holding Entity] → Brazilian Export CNPJ (RADAR + Siscomex), Bahia & Pará → dedicated importers: US (TrueTech Inc, live), China & Europe (TBD) → Agroverse reseller network.

3 · Background

TrueSight DAO

A values-driven, open-source organisation building social ventures and recording its operations transparently (governance, treasury, and supply-chain data are published publicly). Agroverse is its flagship program.

Agroverse

A regenerative-agriculture network connecting Northern-Brazilian (Amazonian and Bahian) farmers and cooperatives directly to conscious buyers. The network handles farm onboarding, FDA/FSVP certification, community warehousing in Brazil and abroad, and last-mile distribution to resellers.

The demand side is already live — 30+ retail and venue partners carry Agroverse cacao (agroverse.shop/partners).

TrueTech Inc — the existing US import entity

- **Legal name:** TRUETECH INC
- **Form:** C-Corporation, Delaware (IRS Form 1120 filer)
- **EIN:** 88-3411514
- **US Customs importer-of-record no.:** 88-341151400
- **FDA Food Facility Registration:** 12202640780 (VALID, exp. 2026-12-31)
- **D-U-N-S:** 11-903-5208
- **Officer:** Zhiwen Teh (Gary Teh), President

4 · Current State & Problem

Brazilian exports currently flow through "Black King" — the individual CNPJ of Matheus Reis Pereira (CNPJ 50.042.585/0001-80), an Empresário Individual (micro-enterprise, Simples Nacional) based in Ilhéus, Bahia.

Why this must change:

1. **Personal tax liability** — routing DAO-scale export flow through Matheus's individual CNPJ accumulates Brazilian tax exposure on him personally
2. **Not automatable** — building automation on an individual's personal registration is inappropriate and risky
3. **Single point of failure** — a community-wide operation should not depend on one person's personal legal standing, banking, and RADAR limits
4. **Scale & financing** — a Simples Nacional micro-enterprise has limited RADAR capacity
5. **Wrong CNAE for exports** — Black King's CNPJ has only service CNAEs (82.30-0-01, events/fairs), no Inscrição Estadual (IE), and no NF-e model 55 credentialing at SEFAZ-BA. This means it cannot legally issue export NF-e, which is required for DU-E registration in Siscomex. A new CNPJ with the correct commerce/export CNAE is essential.

Recommended CNAE for the new entity: 46.23-1/04 — Comércio atacadista de cacau (wholesale cacao trade). This is the most specific and appropriate code for our export operations. The new CNPJ must also obtain Inscrição Estadual (IE) at SEFAZ-BA and credential for NF-e model 55 emission before it can issue export invoices.

5 • Proposed Structure — Two Paths

Path A: Próspera HoldCo (original proposal)

DAO contributors (TDG holders) → Próspera HoldCo (Honduras ZEDE) → Brazilian Export CNPJ (Ltda, RADAR + Siscomex) → TrueTech Inc (US import, Delaware C-corp) — already live

- **Tier 1 — Próspera HoldCo.** A new entity incorporated in the Próspera jurisdiction acts as the holding/operating company and owner of the Brazilian export entity.
- **Tier 2 — Brazilian Export CNPJ.** A new Brazilian company, owned/controlled by the Próspera HoldCo, incorporated to export Northern-Brazilian agricultural products. It obtains RADAR habilitation and operates in Portal Único Siscomex in its own name.
- **Tier 3 — Destination-market importers** (one per market). US: TrueTech Inc (already established); China and Europe: TBD.

Pros: Designed path for foreign-owned Brazilian entity; Próspera counsel already identified (Layon Costa, Tools for the Commons)

Cons: Higher cost (\$5K-15K+), longer timeline (2-6 months), unknown banking

Path B: Wyoming UNA/DUNA (alternative)

DAO contributors (TDG holders) → Wyoming UNA/DUNA (US nonprofit association, ~\$50 via OtoCo) → Brazilian Export CNPJ (Ltda, RADAR + Siscomex) → TrueTech Inc (US import, Delaware C-corp) — already live

- **Tier 1 — Wyoming UNA.** Formed via OtoCo smart contract (~\$50 gas, this week). Two wallet addresses sign. Auto-converts to DUNA when membership exceeds 100.

- **Tier 2 — Brazilian Export CNPJ.** Same as Path A — a new Brazilian company owned by the UNA/DUNA.
- **Tier 3 — Destination-market importers.** Same as Path A.

Pros: Very low cost (~\$50), this week, US jurisdiction (Wyoming), Wise banking available, simpler ownership mapping

Cons: Unclear whether a Wyoming UNA/DUNA (nonprofit association) can legally own a Brazilian for-profit Ltda — this is the core question for counsel

Key question for Layon Costa: Can a Wyoming UNA/DUNA hold equity in a Brazilian Ltda as a foreign quotaholder, or does Brazilian law require an intermediate for-profit holding entity (like a Próspera corporation)?

6 · Ownership — Mapped to DAO Contributor Ledger

Regardless of which path, the holding entity is not owned by a single founder. Its beneficial ownership is intended to map to the DAO's existing contributor ledger: the individuals recorded in the Main Ledger's "Contributors contact information" tab, each owning in proportion to the governance tokens (TDG) they have earned.

Snapshot — 26 May 2026:

- 316 contributors hold a non-zero TDG balance across ~2,263,640 TDG issued

#	Contributor	TDG controlled	Ownership %
1	Gary Teh	955,459	40.77%
2	Garis Pang	67,653	2.89%
3	Fatima Toledo	65,853	2.81%
4	Val Lapidus	62,143	2.65%
5	Jacob Nelan	60,726	2.59%
6	Priscilla Huang	58,590	2.50%
7	Kelvin Chew	58,360	2.49%
8	Vlatko Gigov	50,584	2.16%
9	Aléksa Mil	44,820	1.91%
10	Johnson Teh	38,665	1.65%
11	Anika Giftge	37,560	1.60%
12	Gautam Mittal	33,450	1.43%
13	Richard Chu	30,243	1.29%
14	Matheus Reis	29,693	1.27%
15	Emelin	25,621	1.09%

#	Contributor	TDG controlled	Ownership %
...	+301 more contributors	≈ 644,000	≈ 28.5%

7 · What We Need From Counsel

Core decision question (for Layon Costa / Tools for the Commons)

We need a comparative assessment of both routes:

1. Can a Wyoming UNA/DUNA legally own a Brazilian Ltda as a foreign quotaholder? If yes, what are the specific requirements, restrictions, and ongoing compliance obligations?
2. What does Próspera offer that the UNA/DUNA cannot? — tax treatment, recognition by Brazilian authorities, banking access, ease of AI-agent operation, ability to issue equity to contributors
3. What does the UNA/DUNA offer that Próspera cannot? — cost, speed, US legal recognition, Wise banking, simpler ownership mapping
4. If both are viable, which is more appropriate for our specific use case?

For Brazilian foreign-trade / customs & tax counsel

- What is the most suitable Brazilian legal form (e.g. Sociedade Limitada — Ltda) for an export-only entity that will be foreign-owned?
- Foreign-ownership mechanics: requirement for a resident legal representative, CPF/CNPJ registration of foreign quotaholders, and RDE / foreign-capital registration with the Banco Central.
- RADAR habilitation: which modality (Expressa / Limitada / Ilimitada), documentation, capacity proof, and realistic timeline for a newly formed entity.
- Siscomex / Portal Único access and the DU-E export-declaration workflow — and to what extent it can be filed via API / programmatically vs. requiring a despachante aduaneiro.
- Tax regime selection (Simples vs. Lucro Presumido vs. Lucro Real) for a low-margin, high-frequency export operation, and treatment of export-related tax exemptions/credits (ICMS, PIS/COFINS, IPI on exports).
- Transfer-pricing / intercompany pricing posture between the Brazilian entity, the holding entity, and TrueTech Inc (US).
- Clean migration path from the current Black King (Matheus) arrangement without disrupting existing FDA/FSVP supplier registrations.
- Brazilian-side implications of exporting to multiple destination markets (US, China, EU) and multiple agricultural product lines beyond cacao — NCM classification, MAPA / phytosanitary certification, and per-destination export certificates.
- CNAE 46.23-1/04 (wholesale cacao) as the primary activity code — confirm this is sufficient for all planned export NCMs (1801, 1803, 2106).

For Próspera-jurisdiction incorporation counsel

- Appropriate Próspera entity type to act as a holding company owning a Brazilian operating subsidiary.
- Banking, substance, and reporting requirements; how a Próspera entity is recognised as a foreign quotaholder in Brazil.
- Interaction with TrueTech Inc (US) — whether the Próspera HoldCo should also sit above TrueTech or remain Brazil-side only.
- Suitability of the structure for DAO / tokenised governance and for AI-agent-operated subsidiaries.

On ownership & securities (for both counsel)

- How to translate a ~316-holder, continuously-updating, TDG-weighted contributor base into recognised ownership of the holding entity — e.g. direct membership interests to a defined snapshot, a foundation / SPV that holds for the DAO, or a tokenised cap table.
- Securities-law treatment of TDG-as-ownership across the Próspera jurisdiction, Brazil, and the US.
- Snapshot / cut-off mechanics for an ownership base that changes as contributions accrue; treatment of pseudonymous holders and any KYC needed for owners of record.

8 · The Brazilian Supply Base

These are the verified suppliers already onboarded under TrueTech Inc's FSVP program. All Brazilian suppliers below hold active FDA Food Facility Registrations and have written assurances on file.

Trade name	Legal name	CNPJ	Location	Products	FDA FFR
Coopercabruca	Cooperativa dos Cacaucultores do Sul da Bahia	31.948.811/0001-42	Itabuna, BA	cacao nibs, mass, molasses	17660066140
Black King	Matheus Reis Pereira (Empresário Individual)	50.042.585/0001-80	Ilhéus, BA	nibs, mass, molasses, tea, husk, ceremonial cacao	19088052616
CEPOTX	Coop. Central de Produção Orgânica da Transamazônica e Xingu	22.568.369/0001-38	Altamira, PA	organic cacao almonds	14674182470
Mu Gelato	Mu Gelato Sorvetes Artesanais Ltda	23.655.374/0001-40	Florianópolis, SC	chocolate-coated coffee bean candy	19657644518
Hau Cacau	Hau Cacau Superalimentos Ltda	on file	Porto Alegre, RS	cacao mass	18719939322

Cacao is the first commodity through the bridge because the supplier base and FDA/FSVP compliance are already in place. The same Brazilian export entity is designed to carry additional Northern-Brazilian agricultural products (Bahia & Pará) as they are onboarded.

9 • Key Person

Field	Detail
Name	Gary Teh — legal/registered name Zhiwen Teh
Role	TrueSight DAO contributor; President of TrueTech Inc (US); proposed responsible principal for the new structure
Brazilian CPF	039.733.078-22
Email	garyjob@truesight.me / garyjob@agroverse.shop

Gary already holds a Brazilian CPF and is the natural responsible principal on the Brazilian side, whether as a named officer of the new CNPJ or as the representative of the holding entity.

10 • Data Room & Compliance Status

- **FSVP / FDA compliance:** all suppliers carry VALID FDA Food Facility Registrations (exp. 2026-12-31) and written assurances under TrueTech Inc's FSVP small-importer program.
- **Public document repository:** github.com/TrueSightDAO/fda_fsvp — supplier folders hold CNPJ certificates, D&B records, FDA registrations, written assurances, supplier-evaluation declarations, and site-visit reports.
- **Machine-readable profiles:** each supplier folder contains entity.json and the US entity is in `truetech_inc.entity.json` for fast review by counsel or AI agents.
- **Transparency surfaces:** truesight.me (DAO), truesight.me/agroverse (program).

11 • Glossary

Term	Definition
CNPJ	Cadastro Nacional da Pessoa Jurídica — Brazilian company tax/registration ID
CPF	Cadastro de Pessoas Físicas — Brazilian individual tax ID
RADAR	Receita Federal license authorising a Brazilian entity to operate in foreign trade via Siscomex
Siscomex / Portal Único	Brazil's Integrated Foreign Trade System; platform for filing export declarations

Term	Definition
DU-E	Declaração Única de Exportação — the single export declaration filed in Portal Único Siscomex
Despachante aduaneiro	Licensed Brazilian customs broker who files customs declarations
FSVP	FDA Foreign Supplier Verification Program — US importer obligation to verify foreign food suppliers
FDA FFR	FDA Food Facility Registration number
EIN	US Employer Identification Number (federal tax ID)
Próspera (ZEDE)	Special economic / governance jurisdiction; the proposed home of the holding company
TDG	TrueSight DAO governance token — earned through verified contributions; defines economic ownership and voting weight
CNAE	Classificação Nacional de Atividades Econômicas — Brazilian economic activity classification code
NF-e	Nota Fiscal eletrônica — Brazilian electronic invoice (model 55 for export)
IE	Inscrição Estadual — state registration for ICMS tax purposes
SEFAZ	Secretaria da Fazenda — state tax authority (SEFAZ-BA for Bahia)